

4.	<u>30-2025-01500136-CU-BC-CJC</u> Barr vs. Elite Beverage International Inc.	Before the Court is a Motion for Reconsideration submitted by Defendants Elite Beverage International (“Elite”), Inc., Steven C. Rice, Stellar Spirits and Wines, Inc., and Luis A. Cota (“Defendants”), pursuant to California Code of Civil Procedure Section 1008. ROA 138. Defendants request that the Court reconsider its April 21, 2026, order granting Plaintiff’s motions to compel further responses to discovery demands (ROAs 74, 81, 85, and 89) and imposing monetary discovery sanctions upon Defendants’ counsel (ROAs 94 and 97). <i>Id.</i> The Court issued the previous order after Defendants’ counsel failed to appear in person for an Informal Discovery Conference (“IDC”) as ordered (ROA 79). ROA 138. Defendants request reconsideration on the grounds that Defendants’ counsel’s failure to appear was inadvertent. ROA 138 ¶ 3. Counsel argues that because the IDC was not on the merits, counsel assumed that remote appearance was permitted and, thus, attempted to appear remotely via the Court’s Zoom link for Department CM02. <i>Id.</i> Additionally, Defendants request that the Court reconsider its order imposing monetary discovery sanctions on counsel for Defendants on the grounds that Plaintiff’s motion requested the imposition of sanctions exclusively upon Elite and did not place Defendants’ counsel on notice for potential sanctions. ROA 138 ¶ 3. Motions for Reconsideration Under California Code of Civil Procedure Section 1008, a party affected by a Court’s order “may, within [ten] 10 days after service upon the party of written notice of entry of the order,” move the court to reconsider, modify, or revoke the court’s prior order. Cal. Civ. Proc. Code § 1008(a). A motion for reconsideration requires a showing of “new or different facts, circumstances, or law.” Cal. Civ. Proc. Code § 1008. On March 19, 2026, the Court ordered the parties to attend an Informal Discovery Conference (“IDC”) scheduled for April 20, 2026. ROA 79. The Court’s order emphasized, in both bold and italicized lettering, that “[c]ounsel are to appear <i>in person</i> for the IDC” and that failure to adhere to
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	the Court’s order would result in sanctions. <i>Id.</i>, (italics in original). Here, the Court notes that Defendants offer no new or different facts, circumstances, or law in support of this motion. Thus, with respect to Defendants’ request that the Court reconsider its prior order on the grounds that Defendants’ counsel inadvertently failed to comply with the Court’s order to appear in person, the Court declines. Notice Requirements State law, as well as both state and federal constitutions, demand notice before the imposition of monetary sanctions. <i>In re Marriage of Fuller</i>, 163 Cal. App. 3d 1070, 1077 (1985); Cal. Civ. Proc. Code § 2023.030; Cal. Const., art. I § 7; U.S. Const., 14th Amend. California Code of Civil Procedure Section 2023.030 requires that any “party, person, or attorney” upon whom a court imposes sanctions for misuse of the discovery process first be provided with notice. Cal. Civ. Proc. Code § 2023.030. This notice requirement extends even to counsel of record where a moving party’s motion for sanctions does not request the imposition of sanctions against them. <i>Fuller, supra</i>, 163 Cal. App. 3d at 1078. Thus, a court does not have discretion to order the <i>ex parte</i> imposition of sanctions against counsel of record unless they are first placed on notice by the moving party. <i>O’Brien v. Cseh</i>, 148 Cal. App. 3d 957, 962 (1983). Here, the Court finds that Plaintiff’s motions do not request sanctions upon Defendants’ counsel and therefore did not place Defendants’ counsel on notice. ROA 74, p.2; 81, p.2; ROA 85, p.2; ROA 89, p.2. Thus, Defendant’s argument is well taken. Accordingly, the Court GRANTS IN PART Defendants’ Motion for Reconsideration and amends the previous Minute Order (ROA 97) as follows: the Court strikes the portion of the order imposing discovery sanctions on Defense Counsel Prenovost, Normandin, Dawe & Rocha in the amount of \$9,487.50, and ORDERS counsel for
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		Defendants to appear and Show Cause re: failure to follow the Court's order to appear in person for IDC, and to provide justification for the imposition of sanctions upon Defendants rather than Defendants' counsel, scheduled for July 9, 2026, at 9:00 a.m. in this Department. Clerk shall give notice.
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